

Mandatory Reporting

Policy: All local agency WIC staff are mandatory reporters of child abuse or neglect. Local WIC programs should follow their own local agency's established guidelines and procedures for reporting these situations.

Regulation: Colorado Revised Statute (CRS 19-3-304)

Procedure/Additional Guidance:

It is recommended that local agencies develop written internal reporting procedures and resources (for staff and participants) with input from legal counsel, local law enforcement and child protective services. Written procedures should detail how staff members will respond to any reportable or potentially reportable situation, who is required to report, and to whom the report is made (child protective services or law enforcement agency). It is also recommended that local agencies provide mandatory reporting training and resources for staff members. The Colorado Department of Human Services (CDHS) provides the Child Welfare On-line Training System at https://coloradocwts.com/wbt/mandatory_reporter_guest/index.html. This valuable resource introduces staff members to mandatory reporting requirements.

Colorado's definition of child abuse or neglect

Child abuse is an act or omission that threatens the health or welfare of a child and includes signs of physical abuse or physical injury that is not justifiably explained, malnutrition, child is subjected to unlawful sexual behavior, child's parent or legal guardian or custodian does not provide adequate food, clothing, shelter, medical care, or supervision, emotional abuse, a controlled substance is manufactured or attempted to be manufactured either in the child's presence or on the premises where the child resides or is found, a child tests positive at birth for either a schedule I controlled substance or a schedule II controlled substance unless the positive test was for a prescribed medication that the mother was taking. (CRS 19-1-103, 19-3-201, 16-22-102, 18-3-401-405.4, 411, 502).

Types of Child Abuse:

- Physical Abuse
- Sexual Abuse
- Emotional Abuse
- Human Trafficking
- Institutional Abuse

There are five types of neglect:

- Physical Neglect
- Medical Neglect
- Educational Neglect
- Emotional Neglect
- Lack of Supervision

How is a report made?

Reporting procedures are detailed in CRS 19-3-307, 25-1-122 (4) (d) and 25-4-1404 (1) (d).

Depending upon the local agency's reporting guidelines, a report is made immediately by calling the county's child protective service, local law enforcement agency, or Colorado's Child Abuse and Neglect Hotline: 1-844-CO-4-KIDS (or 1-844-264-5437); followed by a written report prepared by the mandatory reporter.

Child protective services (CPS) personnel are required to assess reports of child abuse and/or neglect. CPS works with community professionals, who are mandated reporters, to prevent, identify, and respond to child abuse and/or neglect.

The Participant Care Plan should be used to document WIC-related observations, verbal or written reports. All documentation must be done in a professional manner as any WIC record can be used for legal purposes.

To whom should a report be made?

Generally, interfamilial abuse (includes abuse that occurs within a family context by a child's parent, stepparent, guardian, legal custodian, relative, spousal equivalent or any other person who resides in the child's home) is reported to the child protective services in the county where the victim lives.

Third party abuse (includes abuse by any person who is not a parent, stepparent, guardian, legal custodian, spousal equivalent) is reported to law enforcement where the crime occurred. Local child protective services can provide guidance regarding to whom a report should be made. (Definitions from CRS 19-1-103)

Does a report need to be made? Issues to consider:

1. Is there evidence or suspicion of physical, sexual or emotional abuse?
2. Are there signs of neglect (physical, medical, educational, emotional &/or lack of supervision)?
3. Is the parent/caregiver abusing substances in view of the child/ren?
 - a. How is this impacting the safety/well-being of the child/ren?
 - b. Are substances easily accessible to the child/ren, thereby increasing the risk of accidental ingestion?
 - c. Is there a sober caregiver at home? Is the parent/caregiver driving under the influence with child/ren in the vehicle?

Assistance for mandatory reporters:

Staff should follow the reporting policies established by their local agency. A suspicion of abuse or neglect is adequate for reporting to child protective services. Staff should not attempt to further investigate or probe suspected child abuse or neglect. Staff making a report may find speaking with a fellow staff member or supervisor helpful but the mandatory reporter is ultimately responsible for complying with reporting laws.

If staff is unsure about whether a report should be made, they should contact their local child protective services for guidance.

What happens when a report is made?

When a report of suspected child abuse and/or neglect is made, child protective services collects relevant information from the reporting party and screens the call to determine if a report will be accepted for assessment. Child protective services will prioritize accepted reports and assign them for assessment or for referral to other agencies, community services or another jurisdiction.

After a report is made, the county is required to notify the person who made the report within 30 days regarding whether or not the referral was assigned for assessment. A call may also be made to the county to follow-up to see if the report was assigned. If the referral was assigned, the person making the report may be contacted for additional information.

Note: References are made to various Colorado statutes in the information. Staff should consult the Colorado Revised Statutes for the most current and complete wording of the child abuse and neglect reporting law.

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